

2018 SCC OnLine All 3484

In the High Court of Allahabad
(BEFORE ABHINAVA UPADHYA AND SHASHI KANT, JJ.)

Arvind Kumar Petitioner;

v.

Paschimanchal Vidyut Vitran Nigam Limited and
Another Respondents.

Writ - C No. - 13938 of 2018

Decided on July 4, 2018

Advocates who appeared in this case :

Counsel for Petitioner:- Bidhan Chandra Rai

Counsel for Respondent:- Ajay Kumar

ORDER

1. Heard Sri. Bidhan Chandra Rai, learned counsel for the petitioner and Sri. Ajay Kumar, learned counsel appearing for the respondent-Corporation.

2. Pursuant to the provisional assessment order dated 05.01.2018, now a final assessment order dated 29.03.2018 is stated to have been passed. Case against the petitioner was of theft of electricity and a demand notice was issued on 19.02.2018 for a sum of Rs. 64,44,961/-.

3. Learned counsel for the petitioner submits that it is mere demand notice and no provisional or final assessment order has been passed. It is submitted that initially this Court vide order dated 17.04.2018, directed the counsel for respondent-Corporation to produce final assessment order.

4. Sri. Ajay Kumar, learned counsel appearing for the respondent-Corporation submits that after considering the objection filed by the petitioner, now, the order in question has been filed which has to be taken to be the final assessment order.

5. Sri. B.C. Rai, learned counsel for the petitioner contradicting the arguments of the respondent's counsel submits that final assessment order is passed under Section 126(5) of Electricity Act, 2003 read with Clause 8.1(b) of U.P. Electricity Supply Code, 2005, which mandates that before passing an order of final assessment, an opportunity of hearing ought to be given to the petitioner. From the order impugned, it does not appear that any opportunity was given to the petitioner. Merely his objections are stated to have been considered and the order has been communicated.

6. We find that mandatory provisions under the Act, 2003, before

passing final assessment order have not been followed. The petitioner apparently does not appear to have been given any opportunity in the present case. As such, it can safely be concluded that no final assessment order has been passed.

7. The writ petition is disposed of with direction to the Executive Engineer, Electricity Distribution Division-I/respondent no. 2 to pass final assessment order after giving opportunity to the petitioner within a period of 15 days from the date a certified copy of this order is produced before the authority concerned. Till final assessment order is passed the impugned recovery notice dated 19.02.2018, demand notice dated 20.01.2018 and assessment bill dated 03/05.01.2018 issued by respondent no. 2, shall be kept in abeyance.

8. With above directions the writ petition stands disposed of.

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